[Public Land Order 84]

ALASKA

WITHDRAWING PUBLIC LANDS FOR PROTECTION OF THE RICHARDSON HIGHWAY

By virtue of the authority vested in the President and pursuant to Executive Order No. 9146 of April 24, 1942, *It is ordered as follows:*

Subject to valid existing rights, the public lands in the following-described area are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, for protection of the Richardson Highway.

TANANA RIVER AREA, ALASKA

The area lying between the Delta and Tanana Rivers and the Richardson Highway within 20 miles of the town of Big Delta.

The area described, including both public and non-public lands, aggregates approximately 27,000 acres.

So far as the above-described area is affected, this order shall be subject to (1) the withdrawal for military purposes by Executive Order of May 24, 1905, (2) the withdrawal for military purposes by Executive Order No. 1557 of July 3, 1912, (3) the withdrawal for military purposes by Executive Order No. 2422 of July 14, 1916, (4) Air Navigation Site Withdrawal No. 105 of February 19, 1941, (5) Air Navigation Site Withdrawal No. 162 of June 25, 1941, and (6) the withdrawal for the Trans-Canadian Alaskan Railway by Public Land Order No. 32 of August 18, 1942.

ABE FORTAS,
Acting Secretary of the Interior.

JANUARY 28, 1943.

[F. R. Doc. 43-2025; Filed, February 8, 1943; 9:47 a. m.]

CIVIL AERONAUTICS BOARD.

[Docket Nos. 370, 720 and 775]

PAN AMERICAN AIRWAYS, INC.

NOTICE OF ORAL ARGUMENT

In the matter of the compensation of Pan American Airways, Inc., for the transportation of mail by aircraft, the facilities used and useful therefor, and the services connected therewith between the United States and Europe in transatlantic service, between the United States and Europe by way of South America and Africa, and between the United States and Bermuda.

Notice is hereby given, pursuant to the Civil Aeronautics Act of 1938, as amended, particularly sections 406 and 1001 of said Act, in the above-entitled proceeding, that oral argument is assigned to be held on February 19, 1943, 10 a. m. (eastern war time) in Room 5042 Commerce Building, 14th Street and Constitution Avenue, N. W., Washington, D. C., before the Board.

By the Civil Aeronautics Board.

Dated February 6, 1943.

[SEAL] FRED A. TOOMBS,
Acting Secretary.

[F. R. Doc. 43-2048; Filed, February 8, 1943; 11:32 a. m.]

FEDERAL POWER COMMISSION.

[Docket No. G-115]

THE EAST OHIO GAS COMPANY

ORDER FIXING DATE OF HEARING

FEBRUARY 3, 1943.

It appearing to the Commission that:

(a) On October 26, 1938, the City of Cleveland filed with the Commission a petition praying for an investigation and a determination by the Commission of the cost of transportation in interstate commerce of natural gas by The East Ohio Gas Company from the Ohio River to the city gate of Cleveland, Ohio; by order of February 14, 1939, the Commission instituted an investigation to determine the cost of transportation of natural gas by The East Ohio Gas Company from the Ohio River to the city gate of Cleveland, Ohio; on March 16, 1939, the company petitioned for a rehearing and stay of the order of the Commission on February 14, 1939; on April 14, 1939, the Commission denied the application for rehearing and stay, and amended the order instituting investigation; on June 13, 1939, the company filed a petition for review of the Commission's orders of February 14, 1939, and April 14, 1939, with the United States Circuit Court of Appeals for the Sixth Circuit; and on November 8, 1940, said Circuit Court of Appeals dismissed the petition for want of jurisdiction holding on the authority of *Federal Power Commission* v. *Metropolitan Edison Co. et al.*, 304 U. S. 375, that the challenged order of February 14, 1939, is not reviewable under section 19 (b) of the Natural Gas Act which does not contemplate a review of orders of a procedural, interim, and preliminary character which are merely the means whereby the Commission has taken initial steps to the formulation of an ultimate determination; the company did not file in the Supreme Court of the United States a petition for certiorari with respect to said decision of said Circuit Court of Appeals, but since said date has failed and refused to comply with paragraph (B) of the Commission order of February 14, 1939, which required the company to furnish to this Commission, under oath, on or before April 17, 1939, certain enumerated data respecting inventories, facilities and expenses enumerated in said order;

(b) On June 25, 1942, the Cities of Euclid, Docket No. G-399, and Cleveland, Ohio, Docket No. G-400, filed with this Commission separate complaints against The East Ohio Gas Company in practically identical form, and the City of Lakewood, Ohio, Docket No. G-401, filed a similar complaint on June 29, 1942. Said cities complained that The East Ohio Gas Company has failed and refused to comply with various regulations and orders of this Commission, including the order of this Commission of February 14, 1939. Said cities allege that they have a substantial interest in the enforcement of the Commission's orders and in the determination of the company's original cost. Said cities pray this Commission to enforce its said orders and to determine said original cost; and

(c) On July 5, 1938, by its Order No. 51 and pursuant to the authority vested in it by sections 10 and 14 of the Natural Gas Act, the Commission instituted an investigation of natural-gas companies and directed the filing of reports by such companies. On August 15, 1938, The East Ohio Gas Company filed a response to the questionnaire authorized by said Order No. 51 and supplied the information called for thereby, including a map showing the location of its facilities and a description of the use and method of operation of such facilities, and the Commission has relied upon such facts which were supplied to it by said company. Said company transports to various points in the State of Ohio natural gas produced outside of Ohio and delivered into its transmission systems at the West Virginia-Ohio State line. In East Ohio Gas Company v. Tax Commission, 283 U. S. 465, the Supreme Court of the United States held that said company's transportation of natural gas in the State of Ohio is interstate commerce, using the following language:

The transportation of gas from wells outside Ohio by the lines of the producing companies to the state line and thence by means of applicant's high pressure transmission lines to their connection with its local systems is essentially national—not legal—in character and is interstate commerce within as well as without that State.

The Commission finds that:

It is advisable, necessary and proper, in the public interest, to hold a hearing at this time in the investigation into and concerning the cost of national gas service rendered by said company from the Ohio River to the city gate serving Cleveland Euclid, and Lakewood, Ohio;

The Commission *orders*, That:

(A) A public hearing be held in Room 331, Old Post Office Building, Cleveland, Ohio, on March 3, 1943, at 10:00 a. m., for the purpose of determining:

(i) Whether The East Ohio Gas Company is a natural-gas company within the meaning of the Natural Gas Act; and

(ii) The cost of natural-gas service rendered by said company, including the cost of transportation of natural gas by said company from the Ohio River to the city gate serving Cleveland, Euclid and Lakewood, Ohio;

(B) Interested State Commissions may participate in the hearing as provided in § 67.4 of the Provisional Rules of Practice and Regulations under the Natural Gas Act

By the Commission.

LEON M. FUQUAY,
Secretary.

[F. R. Doc. 43-2027; Filed, February 8, 1943; 9:47 a. m.]

OFFICE OF ALIEN PROPERTY CUSTODIAN.

[Vesting Order 525]

UNTERWESER SHIPPING AGENCY, INC.

Under the authority of the Trading with the Enemy Act, as amended, and Executive Order No. 9095, as amended,